

HINT 365 · Compliance dossier

EU GDPR · Swiss FADP · ePrivacy · MDR boundary — reviewed 2026-10-02 · terms version 21. Self-assessment by the developer for the owner; not legal advice. Source: docs/compliance/gdpr.md. Statuses: compliant, partial, open.

8 compliant · 6 partial · 5 open, out of 19 controls.

C01	Lawful basis	Compliant
C02	Transparency	Open
C03	Minimisation	Compliant
C04	Storage limitation	Compliant
C05	Security in transit	Compliant
C06	Security at rest	Partial
C07	Data location	Partial
C08	Transfers outside EU/CH	Partial
C09	Processors	Open
C10	Rights: access and portability	Partial
C11	Rights: erasure	Compliant
C12	Records	Partial
C13	Impact assessment	Open
C14	Breach procedure	Open
C15	EU representative	Open
C16	Cookies	Compliant
C17	Privacy by design	Compliant
C18	Medical device boundary	Partial
C19	Vulnerability management	Compliant

C01 Lawful basis Compliant

Requirement	Health data processed only with explicit consent
Law	GDPR Art. 9(2)(a), 7 · FADP Art. 6(7)
Evidence	Consent at sign-in and a separate health-data consent; terms v17 accepted and recorded (acceptances, text fingerprint)
Source document	docs/compliance/gdpr.md

Where it is declared to users

Terms of use, version 21 (English) · section “Availability, responsibility and acceptance” · also at /terms

The service may have outages and require updates. Unsupported app versions may be disabled for security. Nothing in these terms excludes statutory rights or the provider’s mandatory responsibilities. You can delete individual records or your account in the app, and exercise the rights explained in the privacy policy. By accepting, you confirm you are at least 18 and agree to these terms. Consent to storing your health data is requested separately and can be withdrawn by deleting your account. Acceptance and health-data consent are recorded with account, document version, language, text hash, app version and time.

Terms of use, version 21 (English) · section “Account, storage and providers” · also at /terms

Sign in with Google uses OAuth 2.0/OpenID Connect. HINT 365 does not receive your Google password. The server stores an HMAC of your Google account identifier, not your email. Confirmed pressure readings are stored with your account in Cloudflare D1 in the EU for up to 365 days and purged daily; lab results stay until you delete them (never automatically). Both they are pseudonymized, not anonymous. Google recovery reconnects your synchronized history. Blood pressure is recorded by voice or with a photo of the monitor. The phone’s speech service may use its own network processing. The photo Scan is optional and off until you unlock it with the API key of your own AI subscription (Claude by Anthropic, ChatGPT by OpenAI, Gemini by Google or Kimi by Moonshot). The key stays only on your phone, encrypted; HINT 365 never receives it. At each Scan the photo of the monitor display goes directly from your phone to the provider you chose, with your key, without your name or account, under that provider’s own terms and privacy policy; the numbers read are shown to you and saved only if you confirm them, and the photo is then deleted from the phone. HINT 365 receives neither the photo nor the key. In both cases only the three numbers you confirmed reach HINT 365. HINT 365 itself sends no data to any AI provider. Acceptance records are retained as evidence after account deletion; technical error codes are retained for 90 days without free-text messages. Details and rights are described in the privacy policy. The web uses only the technical session cookie hint_s (seven days) and the stored cookie choice; Android uses no cookies.

C02 Transparency Open

Requirement	Privacy notice names the controller (name, address, contact)
Law	GDPR Art. 13(1)(a) · FADP Art. 19
Evidence	Gap G1: the owner’s name and postal address are missing
Next step	Human gives name/business name and address
Source document	docs/compliance/gdpr.md

Not declared to users: an internal control, still open.

C03 Minimisation Compliant

Requirement	Only the data needed: no name, no email, no documents
Law	GDPR Art. 5(1)(c) · FADP Art. 6(3)
Evidence	Google account as HMAC only; lab documents never leave the phone; only report date and values as printed; logs without values
Source document	docs/compliance/gdpr.md

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against the original. Extraction may be incomplete or incorrect and does not provide medical interpretation. This responsibility does not exclude the provider's applicable obligations. Results are compared only within the same test and unit; no diagnosis or treatment recommendation is provided.

C04 Storage limitation Compliant

Requirement	Each kind of data kept only as long as its purpose needs
Law	GDPR Art. 5(1)(e) · FADP Art. 6(4)
Evidence	Blood pressure 365 days (nightly purge); lab results until the user deletes them (purpose: complete history, user-controlled); errors and events 90 days; sessions and links 7 days
Source document	docs/compliance/gdpr.md

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C05 Security in transit Compliant

Requirement	Encrypted transport and authenticated requests
Law	GDPR Art. 32 · FADP Art. 8
Evidence	HTTPS/TLS only (Cloudflare, TLS 1.3 when supported); every app request signed with a key kept on the phone; replay protection
Source document	docs/testing/test-report-2026-09-28.md

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C06 Security at rest

Partial

Requirement	Stored data protected against unauthorised access
Law	GDPR Art. 32 · FADP Art. 8
Evidence	Only the Worker reaches D1; no third-party API keys stored on the server (the optional AI Scan of terms v21 keeps the person's own key only on the phone, encrypted with the Android Keystore); codes, cookies, links and files as fingerprints. Health values are not field-encrypted and D1 disk encryption is not stated in Cloudflare's documentation we checked
Next step	Decide whether to encrypt lab and pressure values per account
Source document	docs/compliance/gdpr.md

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C07 Data location

Partial

Requirement	Data stored in the EU
Law	GDPR Art. 44 · FADP Art. 16
Evidence	D1 database bound to the EU jurisdiction; the Worker may run at a Cloudflare edge outside the EU (stated in terms and privacy, gap G4)
Next step	Regional services (paid) if required after legal review
Source document	docs/compliance/gdpr.md

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C08 Transfers outside EU/CH Partial

Requirement	Transfers named, with safeguards
Law	GDPR Art. 13(1)(f), 44–49 · FADP Art. 16
Evidence	Only Google (sign-in, billing) outside the EU, named with DPF/SCC. The optional photo Scan (terms v21) sends the photo of the monitor display straight from the phone to the AI provider the person chose (Claude/Anthropic, ChatGPT/OpenAI, Gemini/Google or Kimi/Moonshot, possibly outside the EU) with the person's own key, under the person's own contract with that provider; HINT 365 receives neither the photo nor the key, only the three confirmed numbers. Off by default; lab documents are never transferred
Next step	Legal review of the wording (G3), including the person-to-provider transfer of the Scan photo
Source document	docs/compliance/gdpr.md

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C09 Processors Open

Requirement	Processor agreements checked and filed
Law	GDPR Art. 28 · FADP Art. 9
Evidence	Gap G11: Cloudflare DPA acceptance on the account not yet confirmed
Next step	Human confirms in the Cloudflare account
Source document	docs/compliance/gdpr.md

Not declared to users: an internal control, still open.

C10 Rights: access and portability Partial

Requirement	Full export of one's data
Law	GDPR Art. 15, 20 · FADP Art. 25, 28
Evidence	Web Dashboard shows all data, PDF of lab results and 7-day pressure report; no single machine-readable export of everything (G5)
Next step	"Download all my data" (JSON/CSV) in the Web Dashboard
Source document	docs/compliance/gdpr.md

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C11 Rights: erasure Compliant

Requirement	Delete single data, all data, the account
Law	GDPR Art. 17 · FADP Art. 32
Evidence	Readings, a lab date, all lab results, a report, or the whole account, immediately; acceptance record kept on legitimate interest
Source document	docs/compliance/gdpr.md

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C12 Records Partial

Requirement	Record of processing activities
Law	GDPR Art. 30 · FADP Art. 12
Evidence	Draft kept in docs/compliance/gdpr.md section 5, updated with lab results
Next step	Human reviews and signs
Source document	docs/compliance/gdpr.md

Not declared to users: an internal control.

C13 Impact assessment Open

Requirement	DPIA for health data at scale
Law	GDPR Art. 35 · FADP Art. 22
Evidence	Gap G9
Next step	Claude drafts from the threat model, Human signs
Source document	docs/compliance/gdpr.md

Not declared to users: an internal control, still open.

C14 Breach procedure Open

Requirement	Notify the authority within 72 hours, users if high risk
Law	GDPR Art. 33, 34 · FADP Art. 24
Evidence	Gap G10; emergency switch-off of all apps exists (app_off)
Next step	One-page procedure (who notices, decides, notifies FDPIC / Garante)
Source document	docs/security/vulnerability-management.md

Not declared to users: an internal control, still open.

C15 EU representative Open

Requirement	Representative in the EU for a Swiss controller
Law	GDPR Art. 27
Evidence	Gap G7
Next step	Human appoints a representative service
Source document	docs/compliance/gdpr.md

Not declared to users: an internal control, still open.

C16 Cookies

Compliant

Requirement	Only technical cookies, after consent, declared
Law	ePrivacy Art. 5(3) · FADP
Evidence	One cookie (hint_s) after consent; the app uses none; declared in terms and privacy
Source document	docs/legal/privacy.html

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C17 Privacy by design

Compliant

Requirement	The owner never sees values, reports or names
Law	GDPR Art. 25 · FADP Art. 7
Evidence	Admin shows totals and codes only; observability without values
Source document	docs/architecture/architecture.html

Not declared to users: an internal control.

C18 Medical device boundary Partial

Requirement	No diagnosis or interpretation
Law	EU MDR / Swiss MedDO (MDCG 2019-11)
Evidence	No judgement or advice; the orange ↑/↓ only repeats the comparison with the reference printed on the report
Next step	Legal review before the Play Store
Source document	docs/compliance/gdpr.md

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HINT 365 is a personal diary for recording blood pressure and confirmed lab results and displaying their history. It does not measure, diagnose, judge whether values are normal or recommend treatment. Your doctor assesses the results. Never change treatment because of the app. For an emergency contact a doctor or emergency services (144 in Switzerland, 112 in Europe).

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C19 Vulnerability management

Compliant

Requirement	Known vulnerabilities found and fixed in time
Law	GDPR Art. 32 · FADP Art. 8
Evidence	Nightly OSV/Semgrep/gitleaks scan, Dependabot, deadlines by severity; see the Security console
Source document	docs/security/vulnerability-management.md

Not declared to users: an internal control.